

In T.1903/13 the board stated in its catchword that it was within the board's discretion not to admit auxiliary requests which defined subject-matter "diverging" from subject-matter of higher-ranking requests, including those requests which, in essence, were filed during the first-instance proceedings and re-filed with the respondent's reply, but were not examined by the first-instance department.

In T.1280/14, although the board had already found fault in its preliminary opinion with the various alternative lines of defence formed by these requests, the respondent (patent proprietor) did not reveal until the oral proceedings that it from then on intended to pursue only two of them. Holding that it should have communicated this change to its requests in due time, i.e. no later than one month before the oral proceedings, and that its conduct had therefore been at odds with the need for procedural economy, the board refused to admit its two remaining auxiliary requests.

5.12.6 Unsubstantiated requests

In a number of decisions, it has been observed that unsubstantiated auxiliary requests cannot be considered or are not admissible in appeal proceedings (see e.g. T.667/18).

Under Art. 12(2) RPBA 2007 (referred to in Art. 12(4) RPBA 2007, which may still apply in some cases by virtue of Art. 25(2) RPBA 2020), the statement of grounds of appeal and the reply must set out the parties' complete case. In particular, it must be set out why it is requested that the decision under appeal be amended or upheld. Taken as a whole, the RPBA 2007 make it clear that appeal proceedings are primarily written in nature, with Art. 12(2) RPBA 2007 requiring that the parties' complete case be submitted at the outset. The purpose of this provision is to ensure fair proceedings for all concerned and to enable the board to start working on the case on the basis of both parties' complete submissions. In inter partes proceedings, both rights and obligations should be divided equally among the parties so that the board can perform its independent judicial function (T.217/10, T.1732/10, T.1890/09).

In T.2598/12 it was stated that there was no time bar to the requirement following from Art. 12(2) and (4) RPBA 2007 that a request filed during appeal proceedings must be properly substantiated. Consequently, this requirement applies, mutatis mutandis, to new requests filed in response to a communication of the board.

In T.217/10 the board observed that it was not only for the appellant to substantiate its appeal but equally for the respondent to show at an early stage why it considered that the objections raised in the grounds of appeal did not withstand scrutiny. If auxiliary requests were submitted, reasons usually had to be given to explain how they overcame those objections (at least if this was not obvious from the amendments made). See also T.420/14.

In T.1732/10 the board held that not reacting in substance to the appeal of the opponent, but waiting for the board's preliminary opinion before any substantive reaction is filed, is regarded as an abuse of procedure. This is all the more so if the substantiation for all the requests, which were filed after summons to oral proceedings have been sent, is filed only

shortly before the oral proceedings before the board. Such requests – which are not self-explanatory – are considered by the board as submitted **only on the date of their substantiation**.

The boards in T 1836/12, T 1784/14, T 2288/12, T 2101/14 and T 319/18 similarly confirmed that requests which were not self-explanatory were deemed to have been filed only on the date on which they were substantiated.

Auxiliary requests filed by proprietors with their statement of grounds of appeal or reply could not be admitted if they neglected also to specify why the contested decision should be amended or the patent maintained (T 2355/14).

In T 568/14 the board acknowledged that auxiliary requests, if filed without any explanation, may be deemed inadmissible or not validly filed (see e.g. T 253/06). This does not however apply if no explanation as to why amendments are filed is needed because they are **self-explanatory**. This condition was met in the present case. The explanation submitted in T 687/15 was not self-explanatory. The appellant had merely stated that the new requests represented "fall back" positions.

In the following cases too, the appellants (proprietors/applicants) failed to provide (adequate) reasons and so to meet the requirements of Art. 12(2) RPBA 2007.

In T 1533/13 the board stated that the appellant had filed ten auxiliary requests with the statement of grounds of appeal, containing various parameters, and had provided no explanation at all in the statement of grounds of appeal as to why all these parameters had been introduced and which of the opposition division's objections was therefore overcome. The mere filing of amended claims did not exonerate the appellant from the task of expressly specifying in the statement of grounds of appeal the relevance of the amendments for overcoming the objections on which the decision under appeal was based (T 933/09). Endorsed in T 319/18.

In T 2077/13 the board pointed out that filing a request that was previously known to the parties at a late stage of the appeal proceedings does not exempt the appellant from its obligation to provide at least some substantiation with regard to the allowability of this request.

In T 946/16 the patent proprietor had in its statement of grounds of appeal merely said that the arguments substantiating inventive step for the main request applied to all of the auxiliary requests too. It had not said – even implicitly – how the amendments made in the auxiliary request at issue supported its line of argument against the opposition division's finding that the patent as granted lacked inventive step. See also T 2682/16.

On the topic of inadequate substantiation, see also T 1890/09, T 1836/12, T 1134/11, T 162/12, T 122/13, T 964/13, T 940/14 and T 1323/17.

5.12.7 Discretion to admit amended claims at any stage of the appeal proceedings

The board in T 577/97 found that decisions not to admit auxiliary requests ought, in principle, to be limited to exceptional cases in which the filing of the auxiliary requests could be said to amount to an abuse of procedural rights (see also T 148/05). In T 681/02, the board observed that, in the specific case underlying the decision in T 577/97, the auxiliary request had contained a single amendment in the form of a new claim which corresponded to a granted claim with a further restriction. It could therefore be assumed that the subject-matter of the auxiliary request had been searched, so that, in contrast to the case now in hand, it could be examined definitively in the oral proceedings. In some decisions, the boards cite T 577/97 in relation to their discretion to accept amended claims at any stage of the appeal proceedings. In T 1124/04 the board was confronted at a very late stage in the oral proceedings with the filing of further auxiliary requests. In line with T 577/97, the board held that it has at least the discretion to accept amended claims even at a late stage of the appeal proceedings, thus also during the oral proceedings. Of course, it has to be ascertained that the procedural fairness is not jeopardised by the admission of such late filed claims (T 952/99, T 360/01, T 500/01, T 872/01, T 45/03, T 696/04, T 148/05).

In T 1613/13 the board had to consider whether the fact that the newly filed request resulted in reverting to a request previously withdrawn during the appeal proceedings was per se a reason not to admit the request. The board stated that there was no legal basis that would justify the non-admissibility of a request merely because it has been replaced by another. It has discretion to assess whether or not the withdrawal should be considered definitive, and whether the attempt to reintroduce the withdrawn request was justified or a misuse of proceedings.

5.12.8 No absolute right to a "last chance"

Some decisions considered whether a patentee should always be given a "last chance" to save its patent. It has been thoroughly discussed and clearly established by the boards of appeal that there is no absolute right for a patentee to such a "last chance" request. On the contrary, the admissibility of a late-filed request is always a matter for the board's discretion (T 837/07). Moreover, as stated inter alia in decision T 446/00, the concept of a "last chance" suggests one last chance at the end of the proceedings and not multiple "last chances" on numerous occasions during the course of the appeal (see also T 1067/10, in which the appellant had already had ample opportunity earlier in the proceedings). In some decisions, however, the boards considered that patent proprietors should normally be given an opportunity to limit their claims even as late as at the oral proceedings (see e.g. T 577/97, T 24/99, T 707/08, T 1165/13, T 1624/16).

5.12.9 Change of subject-matter

In T 1273/04, the board held that an amended claim belatedly filed in oral proceedings could only be admitted if it was clearly allowable by virtue of a clearly permissible amendment. However, this principle had to be tempered in examination appeal proceedings by having regard to the extent to which the application had been examined.

Applying this to the case in hand, the board found that the amendment of claim 1 of the main request had shifted the subject-matter claimed in a divergent manner which would require a new study of the prior art and potentially even review of the search in order to assess novelty. The main request was therefore refused.

In T 651/03, the board found that claim 1 of the first auxiliary request had been amended in such a way that its category had been changed from a product claim to a use claim. The board concluded that this change ran counter to Art. 123(3) EPC 1973. The request was therefore clearly non-allowable.

In T 267/09 while the whole discussion in the opposition proceedings and in the appeal proceedings up to and including the oral proceedings before the board was focused only on the independent product claims, the late filed auxiliary requests were directed to method claims. With this change in the category the appellant shifted its case in an unexpected manner in an entirely different direction and in fact created another case. Admitting these requests into the proceedings would run counter to the need for procedural economy and to the principle of procedural fairness.

In ex parte case T 979/07, the board said that admitting a set of claims filed only in oral proceedings and necessitating an additional search because it shifted the claimed invention to other technical matter would de facto give applicants in appeal proceedings carte blanche to get oral proceedings postponed or the whole examination procedure reopened. That would be at odds with the requisite procedural economy (see also T 407/05, T 1123/05 and T 764/07).

5.12.10 Need for additional search

a) General

In T 14/02, intended requests as suggested by the respondent in the oral proceedings would not just have involved a minor change in the wording of claim 1 but rather major limitations of the claim which in all likelihood would have required a new search by the appellant and could have caused a remittal to the first instance (with reference to T 51/90, T 270/90, OJ 1993, 725; T 25/91). Since there was also no apparent reason for only having filed the requests at this stage in proceedings, the board refused to admit them. In T 48/91, the board refused the amended claims as inadmissible because they contained additional features the impact of which was either unclear or impossible to assess without further investigations such as carrying out proper comparison tests (see also T 234/92, in which a feature from the description was introduced to claim 1, so that an additional search might have been required, and T 1105/98, in which an additional search was needed).

By contrast, in T 870/07, the board admitted the main request filed during the oral proceedings as it was in no doubt that the additionally claimed subject-matter had also been searched.

b) Features taken from the description

In some cases, requests filed after the scheduling of oral proceedings referred to features derived solely from the description. This raised the question of whether such features had been included in the original search, or whether an additional search was necessary. It could not be automatically assumed that they had been considered in the original search or that the opponent was responsible for carrying out such a search (T 1732/10, see also T 447/09, T 1273/11). In T 1650/12 and T 2482/10, for example, it was decided that, where an additional search was needed to assess the patentability of claims amended with features from the description at such a late stage that either the oral proceedings had to be adjourned or the case remitted to the department of first instance for further prosecution, Art. 13(3) RPBA 2007 had to be interpreted such that those claims were inadmissible. Remittal of the matter to the opposition division to conduct such a search would amount to the same thing as adjourning oral proceedings, and adjournment would also be necessary if the opponent were obliged to carry out such a search (see also T 1273/11, T 2575/11).

In T 1741/12 and T 881/09 it was decided not to admit the relevant auxiliary requests which incorporated probably unsearched features taken from the description, using the board's discretionary power under Art. 12(4) RPBA 2007.

c) Additional search exceptionally performed

In T 2127/09, the search division considered that the claimed subject-matter was merely an obvious implementation of game rules on known hardware and did not carry out a search. At the oral proceedings before the board the appellant (applicant) submitted an amended set of claims as sole request in response to the board's objections. The board stated that it was necessary to carry out an additional search in accordance with R. 63 EPC. The board emphasised that remittal should be seen as an exceptional procedural possibility, and that it had also to be examined whether the applicant could have been expected to have made earlier the amendments which were made during the appeal before the board, and thereby could have requested the examining division to perform the necessary search. The board decided to admit the amendments to the claims.

5.12.11 Dependent claims

In T 1060/04 the board held, inter alia, that the fact that an opposition directed to the subject-matter of an independent claim also implicitly covered subject-matter defined in claims dependent on the independent claim (see G 9/91, OJ 1993, 408, point 11 of the Reasons) did not necessarily mean that the parties and the board had to be prepared to assess the allowability and patentability of amended independent claims as granted, including the subject-matter of claims dependent on them, at any time during the proceedings (see also T 794/94).

In T 67/09, the board rejected the appellant's view that auxiliary requests 1 and 2 were admissible because the amendments were essentially limited to a combination of granted claims the subject-matter of which had already been challenged in the proceedings at first